

GENERAL TERMS AND CONDITIONS

For On Site “Green” Services

Subcontract Rider

INDEX

1.	CLAUSES INCORPORATED BY REFERENCE	1	8.	ENVIRONMENTAL PROTECTION REQUIREMENTS	2
2.	BUYER MONITORING OF THE WORK	1	9.	INJURY AND ILLNESS PREVENTION PROGRAM IMPLEMENTATION	3
3.	GOVERNMENT-FURNISHED PROPERTY	1	10.	RETURN OF SLAC BADGES, KEYS, AND DOSIMETERS	3
4.	SELLER PERSONNEL	2	11.	SITE SECURITY AND SENSITIVE FOREIGN NATIONS SITE ACCESS	3
5.	WORK HOURS AND HOLIDAYS	2	12.	INSURANCE	3
6.	COOPERATION WITH OTHER SELLERS AND BUYER PERSONNEL	2	13.	ASSUMPTION OF RISK UNTIL FINAL ACCEPTANCE	4
7.	NOTICE OF LABOR DISPUTES	2	14.	MISCELLANEOUS SITE POLICIES	4

1. CLAUSES INCORPORATED BY REFERENCE

The Article of the Standard Terms and Conditions entitled “Clauses Incorporated by Reference” is supplemented with the following clauses:

DEAR 952.203-70	WHISTLEBLOWER PROTECTION FOR CONTRACTOR EMPLOYEES (DEC 2000)
DEAR 970.5223-4	WORKPLACE SUBSTANCE ABUSE PROGRAMS AT DOE SITES (DEC 2010)
DEAR 952.204-77	COMPUTER SECURITY (AUG 2006), in Subcontracts in which the Seller may have access to computers owned, leased or operated on behalf of the Department of Energy

2. BUYER MONITORING OF THE WORK

- A. The Seller is responsible for performing the work called out herein in a manner fully compliant with all Subcontract requirements. For oversight purposes and any other reason specified in the Subcontract, the work under this Subcontract is subject to monitoring and quality assurance surveillance by the Technical Representative and the Department of Energy.
- B. The Technical Representative shall not impose tasks or requirements upon the Seller additional to or different from those required by the Subcontract. The Technical Representative shall provide such technical guidance to the Seller as may be appropriate and reasonable to assure compliance with all specifications, technical requirements, and other obligations of the Subcontract.

3. GOVERNMENT-FURNISHED PROPERTY

- A. The requirements of this Article three (3) apply when certain Buyer-provided property (hereinafter referred to as Government-furnished property or “GFP”) is provided to the Seller in performance of the Subcontract. The schedules set forth in this Subcontract are based upon the premise that the GFP will be delivered to the Seller in sufficient time to enable Seller to meet said schedules. In the event that such GFP is not delivered to Seller in sufficient time to enable Seller to meet the said schedules, the Buyer shall, if requested by the Seller, determine if any unreasonable delay has occurred, and if so, shall grant a reasonable extension of the time for completion of performance.
- B. Title to such GFP shall be and remain with the Government, and shall not be affected by the incorporation or attachment thereof to any property not owned by the Government, nor shall any such property, or any part thereof, be or become a fixture or lose its identity as personal property by reason of affixation to any realty. The Seller shall maintain adequate property control records of such property consistent with good business practice and as may be prescribed by the Government or the Buyer, and shall cause all such property to be clearly marked (if not so marked) to show that it is property of the Government.
- C. GFP shall be used for the performance of this Subcontract only.
- D. The Seller shall, in accordance with sound industrial practice, protect and preserve such GFP until completion by the Seller of all work required by this Subcontract. Should any repair or replacement of any such property become necessary during

the term of this Subcontract other than by reason of the negligence or fault of the Seller, the same shall be made by the Seller with the approval of and for the account of the Buyer and the title thereto shall vest in the Government and any delay occasioned thereby shall be considered an excusable delay under this Subcontract.

- E. Unless otherwise provided in this Subcontract, the Seller assumes the risk of and shall be responsible for any loss of or damage to the GFP in its possession except for reasonable wear and tear, or due to causes unrelated to the Seller's fault or negligence.
- F. The Government and the Buyer shall at all times have access to the premises wherein any GFP is located.
- G. Upon completion of this Subcontract, the Seller shall submit, in a form acceptable to the Buyer, inventory schedules covering all items of GFP utilized in the performance of this Subcontract (including any resulting scrap), not theretofore delivered to the Government or the Buyer.

4. SELLER PERSONNEL

- A. All Seller employees performing the work under this Subcontract shall have that level of education, experience, physical competence, and training required for the skillful, workmanlike, efficient and safe carrying out of their Subcontract tasks and shall carry out such tasks in like manner.
- B. Only persons who are eligible to work in the United States of America (U.S. citizens, green card holders, or those with the appropriate visa) may be employed to work at this site. Sellers and their employees must show government-issued identification to gain access to this site, and persons who are unable to provide proper I.D. will not be permitted to enter SLAC premises.
- C. In the event that non-English speaking workers are utilized, the Seller shall, at all times when work activity is on-going, have a designated worker who is bilingual in English and the language of those workers on site to interpret work instructions and safety orders.
- D. At the request of the Buyer, the Seller shall notify the Buyer, in writing, of the names of all of its personnel and sub tiers, together with a summary of the extent and character of the work to be done by each.

5. WORK HOURS AND HOLIDAYS

- i. The Seller will be permitted to work in the work areas, and delivery of materials may be made during normal working hours (7 am to 5 pm, Monday through Friday, unless otherwise indicated in the Contract Documents) and, when authorized in advance by the Procurement Specialist, after hours, on holidays, or weekends.
 - A. SLAC holidays:

New Year's Day	Independence Day
Martin Luther King's Birthday	Labor Day Holiday
President's Birthday Holiday	Thanksgiving: Thursday & Friday
Memorial Day Holiday	Christmas - two days
Additionally, SLAC is usually shut down during the period between Christmas and New Year's Day	
 - B. Unless required by law, no extra payment will be allowed for extra expense incurred by the Seller for its employees working holidays.

6. COOPERATION WITH OTHER SELLERS AND BUYER PERSONNEL

Other Seller and Buyer personnel may be working in or occupying the work area within and adjacent to the Seller's work area. All Sellers shall have equal rights to use the haul roads, grounds, utilities, etc., and shall coordinate their activities which may be in conflict so as to cause a minimum of interference. The Seller shall cooperate with others in the scheduling of work to avoid undue inconveniences to all concerned. The Seller shall not commit or permit any act which will interfere with the performance of work by any other Seller or by Buyer employees.

7. NOTICE OF LABOR DISPUTES

Whenever an actual or potential labor dispute is delaying or threatens to delay the performance of the work, the Seller shall immediately notify the Buyer in writing. Such notice shall include all relevant information concerning the dispute and its background.

8. ENVIRONMENTAL PROTECTION REQUIREMENTS

- A. All personnel and equipment necessary for the protection of the environment in performance of the Subcontract shall be the responsibility of and shall be provided by the Seller. Failure to maintain adequate measures to ensure protection of the environment as required by applicable laws and Buyer standards may result in termination for default, and assessment of clean-up costs.
- B. Sellers, their personnel and sub tiers shall not cause to be delivered or bring radioactive materials or radiation generating devices on Buyer or SLAC premises without prior express approval from the Procurement Specialist and designated representatives from Buyers' Radiation Protection Department. [Examples of such radioactive materials and radiation](#)

[generating devices are available.](#)

C. All work shall be performed in a manner consistent with [SLAC's Environmental, Safety and Health Policy](#).

9. INJURY AND ILLNESS PREVENTION PROGRAM IMPLEMENTATION

- A. Seller is responsible for safe working practices and shall ensure the safety of their personnel, sub tier personnel, Buyer personnel, other personnel and visitors, Buyer and Government property, and private property in the performance of the Subcontract. Seller, its personnel and sub tiers shall comply with all applicable safety and health laws, standards, and regulations.
- B. Seller shall implement, and require its personnel and sub tiers to implement [SLAC's Injury and Illness Prevention Program \(IIPP\)](#), or their own equivalent. Seller shall implement, and require its personnel and sub tiers to implement SLAC [ES&H Manual Chapters 2 and 42](#). Seller shall implement, and require its personnel and sub tiers to implement, [Work Planning and Control \(WPC\)](#) to ensure that the overall project and each defined work activity conforms to SLAC's WPC program. In addition, to the extent an on-site incident or accident requiring investigation occurs, the Seller shall fully cooperate in such Buyer and DOE investigations, including by providing access to relevant documentation and personnel.
- C. The Seller shall establish processes to ensure hazards are identified and abated routinely. All Buyer employees, agents, and sub tiers, and DOE employees and agents, have the authority and responsibility to identify and stop any activity creating an imminent danger.
- D. Failure to maintain adequate measures to ensure safe working practices and safety as required by applicable laws and Buyer standards may result in termination for default.

10. RETURN OF SLAC BADGES, KEYS, AND DOSIMETERS

Loss of SLAC badges, keys, and dosimeters present significant security risks and replacement costs for the Buyer. Seller must track ID badges, keys, and dosimeters received by its employees, and notify the Procurement Specialist of any missing badges, keys, or dosimeters as soon as such loss is discovered, and in no event later than closeout. Further, in addition to any other remedies available under this Subcontract, the Buyer may charge, at its discretion, a penalty of \$500 per ID badge, key, or dosimeter not returned to the SLAC Security Office within five (5) days of the completion of the Seller's performance. Such penalties shall be deducted from the final payment. The Buyer may, at its discretion, require a certification from the Seller that it has complied with this requirement and has reported to the Procurement Specialist any missing ID badges, dosimeters, or keys.

11. SITE SECURITY AND SENSITIVE FOREIGN NATIONS SITE ACCESS

- A. All Seller personnel coming on-site must display a valid driver's license if operating a vehicle, or otherwise provide valid government-issued identification.
- B. All Seller personnel regularly performing work on-site must comply with SLAC site access control, badging, training, and emergency protocols.
- C. All operations of the Seller shall take place during times specified in the Subcontract or as defined in Section 5 above and be confined to areas defined in the Subcontract, or as otherwise authorized or approved by the Buyer. Noncompliance may result in revocation of access privileges.
- D. Seller shall access SLAC computers and networks only when such access is reasonably necessary in performing the Subcontract, or otherwise as expressly authorized by the Procurement Specialist. If such access is permitted, Seller must comply with SLAC cybersecurity policies and standards governing the use of SLAC computers and networks.
- E. With the exclusion of GFP furnished to the Seller and Seller's property used in the performance of the Subcontract, all other property on-site belongs to the Buyer or the Government and shall not be removed without express written authorization from the Procurement Specialist.
- F. Unless otherwise specified in the Subcontract, Sellers coming on-site must park in areas designated by the Procurement Specialist or the SLAC Security Office.
- G. In accordance with the Department of Energy Acquisition Regulation 952.204-71 "Sensitive Foreign Nations Controls (Mar 2011)" and the current version of the DOE Order governing Unclassified Foreign Visits and Assignments (DOE Order 142.3A), specific approval requirements for certain non-U.S. Persons ("U.S. Persons" = U.S. citizens and Permanent Residents) working at SLAC National Accelerator Laboratory have been established for Sellers and must be flowed down to their sub tiers. In accordance with these controls, Seller's personnel performing any effort under this purchase order/subcontract on-site shall be subject to the requirement for the completion and submittal of an online registration form: http://www-group.slac.stanford.edu/esh/security/badge_subcontractor.htm, and may be subject to additional access restrictions pursuant to the DOE Order governing Unclassified Foreign Visits and Assignments.

12. INSURANCE

- A. Seller shall secure and maintain in effect at all times during the performance of the work under this Subcontract the coverages of insurance, set forth below, which shall be maintained with companies, underwriters or underwriting firms under forms of policies satisfactory to the Buyer. **The Seller shall furnish to the Buyer concurrently with the execution**

of this Subcontract and prior to commencing any performance thereof, two (2) copies of a Certificate of Insurance substantiating the said coverages and endorsements described below. The types and levels of required insurance for all Subcontracts are as follows:

- i. Business Automobile Liability Insurance for owned, scheduled, non-owned, or hired vehicles with a combined single limit not less than one million dollars (\$1,000,000) per occurrence.
 - ii. Commercial General Liability Insurance with limits (as supplemented by any umbrella policies, if applicable) as follows:
 - a. For Subcontracts with a total value under \$100,000, insurance limits not less than one million dollars (\$1,000,000) per occurrence;
 - b. For Subcontracts with a total value from \$100,001 through \$999,999, insurance limits not less than three million dollars (\$3,000,000) per occurrence;
 - c. For Subcontracts with a total value greater than one million dollars (\$1,000,000), insurance limits not less than five million dollars (\$5,000,000) per occurrence.
 - iii. Worker's Compensation Insurance of not less than \$1,000,000 per person; \$1,000,000 per accident with an endorsement containing a clause waiving subrogation.
- B. Seller shall provide the following endorsements to its Commercial General Liability policy and/or ensure that the Commercial General Liability insurance policy (together with its umbrella policy if used to satisfy insurance limits above) is amended, if needed, to include the following:
- i. An endorsement naming the Buyer, Board of Trustees of the Leland Stanford Jr. University, its trustees, officers, employees, faculty, students, volunteers, and agents and DOE as additional insureds under said Commercial General Liability policies with respect to liability arising out of or in any way connected with the performance of the Subcontract and stating that said policies are primary as to any loss to which the insurance coverage provided thereby is applicable without right of contribution from any insurance otherwise maintained by the Buyer or DOE.
 - ii. A cross liability or severability of interest clause.
 - iii. A clause waiving subrogation.
 - iv. Inclusion of contractual liability insurance and a statement nullifying any clause in such insurance policies excluding liability assumed under contract.
- C. The Seller, by its signature to this Subcontract, warrants that all of the insurance required by this Subcontract is currently in effect and will be maintained throughout the period of this Subcontract, except that the minimum coverage specified above must not be encumbered by other claims during the period of performance by more than ten percent (10%) of the coverage specified.

13. ASSUMPTION OF RISK UNTIL FINAL ACCEPTANCE

The Seller shall and does hereby assume all risks and responsibility for damage to its work and materials from fire, earthquake, storm and/or other causes prior to the completion and acceptance of the work pursuant to the Article of the Standard Terms and Conditions entitled "Inspection and Acceptance of Items or Services", and shall at its own cost and expense repair and/or replace any work or materials damaged or destroyed.

14. MISCELLANEOUS SITE POLICIES

- A. For the purposes of this rider, Green Services are categories of services described on the [SLAC Infrastructure and Safety – Work Planning and Control Website](#).
- B. The playing of (radios, phone speaker devices) or listening (use of earbuds, or similar) to music, podcasts, etc. while performing work is not permitted.
- C. Except to the extent provided by law, pets are not permitted on Buyer's site.

(END OF GREEN SERVICES RIDER TERMS AND CONDITIONS)